

24SMCV05091 24SMCV05091

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-07-07

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CN%2C07%2F07%2F2026

Source SHA-256: 8cd33848dbe8366e06cfd03b7338a0011aa4cf13a443f59430e71bde00ec69

Case Number: 24SMCV05091 Hearing Date: July 7, 2026 Dept: N

TENTATIVE RULING

Defendant Seyfarth Shaw LLP's motion to compel further responses to deposition questions

is DENIED.

Seyfarth Shaw LLP to give notice.

REASONING

Defendant Seyfarth Shaw LLP (Seyfarth) moves to compel further responses to deposition questions from counsel for Health Holdings, Inc., Team Health, LLC; AmeriTeam Services, LLC, and Chase Dennis Emergency Medical Group, Inc. (Plaintiffs) Lawrence Eastwood regarding Exhibits F, G, and H, as attached to the declaration of Jonathan Brody.

Legal Standard

If a deponent fails to answer any question ... the party seeking discovery may move the court for an order compelling that answer..." (Code Civ. Proc., § 2025.480, subd. (a).) A party may also move for production of documents. (Ibid.) A motion to compel answers to a deposition must be filed within 60 days of the completion of the "deposition record," and accompanied by a meet and confer letter. (Code Civ. Proc., § 2025.480, subds. (a-b).)

Request for Judicial Notice

The court takes judicial notice of its own prior orders and policies.

The court takes judicial notice of the existence of filed pleading in the district court action, but cannot take notice as to the content of any filed document for the truth of the matter asserted. To the extent Plaintiffs appear to present the pleading as a source of authority, the court cannot take judicial notice of unpublished rulings or pleadings. (Cal. Rules of Court, rule 8.1115(a); Rittiman v. Public Utilities Com. (2022) 80 Cal.App.5th 1018, 1043 (footnote 18).)

Motion

The motion lacks any specific address as to the timing of the prior deposition. The deposition in question was presented under seal. Given the April 29, 2026, IDC on the subject matter, the court finds the motion timely.

The subject information involves questions from Seyfarth regarding certain prior deposition exhibits relied upon during mediation in the underlying class action case. In house counsel, Eastwood was instructed not to answer the questions on grounds of the mediation privilege.

Seyfarth challenges the objections on grounds that the content of the depositions constitutes a document prepared in the ordinary course of litigation and not specific to any mediation proceeding. Seyfarth additionally contends the depositions were taken and the transcripts prepared by Seyfarth during representation, thereby allowing Seyfarth to waive any privileges.

Plaintiffs in opposition both maintains applicability of the mediation privilege, and challenge the claim of unilateral waiver of the privilege related to the preparation of mediation documents on behalf of Plaintiffs. Plaintiffs cite the April 29, 2026, IDC order, whereby the court found the August 30, 2021, email “compelling as a ‘start date’ for the later submitted Seyfarth documents which are argued to be mediation related.”

Seyfarth in reply notes that Plaintiffs both bring an action for legal malpractice, yet seek to exclude the evidence relating to “trial within a trial” standard. Seyfarth denies any of the sought after information encompasses the mediation, and Plaintiffs otherwise fail to meet the criteria for mediation confidentiality.

Attorney Client Privilege

Seyfarth maintains no attorney client privilege applies, and Plaintiffs offer no counter position. Plaintiffs never objected at deposition, and apparently concede to waiver through placement of the conduct at issue in the subject action. (Evid. Code, § 958.)

Mediation Privilege

Evidence Code section 1119 bars discovery of evidence regarding “anything said or any admission made for the purpose of, in the course of, or pursuant to, a mediation or a mediation consultation is admissible or subject to discovery, and disclosure of the evidence shall not be compelled, in any arbitration, administrative adjudication, civil action, or other noncriminal proceeding in which, pursuant to law, testimony can be compelled to be given.” (Evid. Code, § 1119, subd. (a).) Unlike the attorney client privilege exception, a malpractice claim will in no way create an exception under the mediation privilege barring a showing of explicit waiver. (Cassel v. Superior Court (2011) 51 Cal.4th 113, 118-119; see Evid. Code, § 1122; Simmons v. Ghaderi (2008) 44 Cal.4th 570, 588.) Seyfarth raises no position regarding waiver.

Seyfarth offers no challenge to the prior finding by the court regarding the “compelling” August 30, 2021, “start date” for the beginning of the mediation process. Seyfarth instead seeks to distinguish any date limitations with a position that the sought after documents were previously produced as part of another routine aspect of any case defense “months before the mediation was scheduled.” Said documents “would have existed ... with or without a mediation.” [Declaration of Jonathan Brophy, ¶¶ 7-8, 11-13; Declaration of Michael Afar, ¶¶ 5-10, 12.]

The mediation privilege “applies to any writing ‘prepared for the purpose of, in the course of, or pursuant to, a mediation or a mediation consultation.’” (Lappe v. Superior Court (2014) 232 Cal.App.4th 774, 784.) Even if the documents were presented for mediation, such presentation does not render them under the mediation umbrella privilege. (Ibid.; Evid. Code, § 1120; Rojas v. Superior Court (2004) 33 Cal.4th 407, 417.)

A review of the work leads to a finding of a document routinely produced for a client in a case of this nature, while also clearly instructive to any mediation proceedings for purposes of establishing parameters and valuation. [Brophy & Afar Decl.] The information appears integral to both mediation as well as the crux of the subject action regarding the omission of a number of persons from the class thereby requiring a second settlement agreement.

On a threshold note, all entries in the separate statement in support of the motion identify emails dated from September 1, 2021, through November 11, 2021. As stated in the IDC order, said emails constitute a compelling basis for a finding of the mediation privilege. Seyfarth seeks to establish a factual distinction between the original pre-mediation prepared document relative to the same referenced document in the privilege protected emails. The operative document in question predates the August 31, 2021, email preceding the mediation.

Plaintiffs rely on the intertwined nature of the Seyfarth work relative to potential impending mediation positions. Plaintiffs also contend that a routine practice by Seyfarth in no way negates the purpose of the confidentiality statute itself.

The legal malpractice claim relies at least in part on a claim that Plaintiffs relied on the insufficiently determined number of potential claimants in entering into the settlement agreement only to later discover the error. In-House counsel for Plaintiff Team Health Holdings, Inc. and Chase Dennie Emergency Medical Group, Inc., and deponent, Lawrence Eastwood, states that the Seyfarth prepared document was presented for the purpose of developing a settlement strategy prior to the first mediation. [Declaration of Lawrence Eastwood, ¶¶ 10-30.]

The relied upon information somewhat if not substantially framed potential considerations relied upon prior to entering mediation and executing the settlement agreement. [Ibid.] Reliance on information related to mediation can fall under the privilege. (*Amis v. Greenberg Traurig LLP* (2015) 235 Cal.App.4th 331, 340.) In other words, even accepting the existence of the routinely prepared content as part of a pattern and practice for wage and hour litigation by Seyfarth, the motion still lacks a meaningful distinction as to any separation of purpose. Plaintiffs relied upon the established parameters prior to participating in mediation. Reframing based on prior conduct and routine will not counter the state of mind of attorney Eastwood in considering settlement. The sought after distinction between preceding documents and documents presented for purposes of mediation and settlement lack a material distinction under the statutory policy. [Ibid.]

Communications “‘made for the purpose of, in the course of, or pursuant to, a mediation or a mediation consultation’ and are not subject to disclosure. This would include an order prohibiting questioning or soliciting information in a deposition or by written discovery as to the content of the” documents utilized for mediation. (*Wimsatt v. Superior Court* (2007) 152 Cal.App.4th 137, 159.) Reliance on the temporal gap between the scheduling and participation and mediation insufficiently overcomes the burden regarding the claimed request for preparation by the client for purposes of preparing for mediation and potential settlement.

The motion to compel further response is DENIED.